

Criminal Law I

Transitioning from IPC to BNS

CHAPTER XVIII

DOCUMENTS AND

PROPERTY MARKS

IPC 463-489E | BNS 335-350 and 178-182

This chapter studies IPC Sections 463-489E, including 477A and the repealed entries 478 and 480. It explains forgery and electronic records, counterfeit authentication, falsification of accounts, property marks and currency offences through provision-level references to BNS Sections 335-350 and 178-182. Read each correspondence with its elements, qualifications and changes in scope.

33 entries (2 repealed) | 4 topic groups | 8 practice problems

Study edition: 5 October 2026. Based on the official BNS Gazette text and commencement notification. Penalty notes concern the cited central BNS text; they are summaries, not verbatim provisions. Read the full applicable enactment for a case.

The IPC chapter numeral XVIII is retained. This lesson occupies course position 20 because the course separately includes introductory and lettered IPC chapters.

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Objectives and transition

- Apply the three false-document modes before concluding that forgery occurred.
- Distinguish making, possessing and using a forged record, and identify special instrument categories.
- Explain account falsification and the role of employment, wilfulness and intent to defraud.
- Distinguish ownership marks, official marks and receptacle-content marks.
- Recognise repealed IPC entries and the relocation of currency offences to BNS Chapter X.
- Choose the correct BNS subsection and penalty while preserving statutory qualifications.

These BNS provisions commenced on 1 July 2024 under S.O. 850(E), dated 23 February 2024. Determine the date and nature of the alleged conduct, the IPC repeal-and-savings provisions in BNS 358 and Article 20(1) of the Constitution; the date a complaint is filed alone does not decide the substantive law. BNS Chapter XVIII contains Sections 335-350, while currency-note counterparts are in Chapter X, Sections 178-182. Consolidation and expanded coverage mean that a crosswalk is not a declaration of identical wording or liability.

How to read the crosswalk

References indicate the closest corresponding subject matter, not necessarily identical scope. IPC 478 and 480 were repealed before BNS. Currency offences are relocated to BNS Chapter X. The other topics are consolidated within Chapter XVIII.

Forgery: definitions, documents and use

IPC 463-471

Begin with the false-document test in BNS 335, then establish the prohibited intent in 336(1). Distinguish ordinary forgery, special classes of instruments, special purposes and knowing use. Electronic records are expressly covered. A false factual claim is not automatically a false document in the statutory sense.

IPC 463. Forgery

BNS reference: 336(1)

Forgery requires making a false document or electronic record with intent to cause damage or injury, support a claim or title, cause a person to part with property or enter a contract, or commit fraud or enable its commission. Read the false-document requirement in BNS 335 first. A disputed claim or false assertion in an otherwise genuinely executed document does not by itself establish forgery.

IPC 464. Making a false document

BNS reference: 335

The three statutory modes concern false attribution or authority in making or executing a document or electronic record; dishonest or fraudulent material alteration without lawful authority; and procuring execution or alteration from a person whose unsoundness, intoxication or deception prevents understanding. The explanations cover certain own-name signatures, fictitious or deceased persons, and electronic signatures. Identify the precise mode rather than merely labelling a statement false.

IPC 465. Punishment for forgery

BNS reference: 336(2)

Ordinary forgery is punishable with imprisonment up to two years, or fine, or both. First prove the definition and then check whether a special document or purpose attracts an aggravated provision.

IPC 466. Forgery of record of Court or of public register, etc.

BNS reference: 337

This covers specified court records, public registers, official certificates or documents, litigation authorities and powers of attorney. BNS expressly includes Government-issued identity documents, including voter identity cards and Aadhaar cards; the explanation includes electronic records and registers. Punishment: imprisonment up to seven years and liability to fine. Do not apply this category to every private document.

IPC 467. Forgery of valuable security, will, etc.

BNS reference: 338

The protected class includes valuable securities, wills, authorities to adopt a son, specified authorities to transfer securities or receive or deliver money or property, and specified receipts or acquittances. Punishment: imprisonment for life, or imprisonment up to ten years, and liability to fine. Establish that the instrument falls within the statutory class.

IPC 468. Forgery for purpose of cheating

BNS reference: 336(3)

Making a forgery with the intention that it be used for cheating attracts imprisonment up to seven years and liability to fine. The intended use is the aggravating feature; a separate allegation of completed cheating still requires its own ingredients.

IPC 469. Forgery for purpose of harming reputation

BNS reference: 336(4)

Forgery intending harm to reputation, or knowing that it is likely to be used for that purpose, attracts imprisonment up to three years and liability to fine. Connect the forged record to the required reputational purpose or knowledge.

IPC 470. Forged document

BNS reference: 340(1)

A false document or electronic record made wholly or partly by forgery is designated a forged document or electronic record. This is a definition, not an independent flat sentencing provision.

IPC 471. Using as genuine a forged document or electronic record

BNS reference: 340(2)

Fraudulent or dishonest use as genuine requires knowledge or reason to believe that the record is forged. Punishment is the same as if the user had forged it. Determine the relevant forgery category before stating the sentence; mere possession or innocent reliance is not automatically this offence.

Counterfeit authentication and falsification of accounts

IPC 472-477A

Separate making a forgery from making or possessing counterfeit authentication tools, possessing a specified forged instrument, destroying protected instruments and employee account falsification. The intended forgery and document category determine the correct provision. BNS 341(3) adds a knowing-possession branch carrying up to three years and fine; 341(4) punishes knowing fraudulent or dishonest use as if the seal or instrument had been made or counterfeited.

IPC 472. Counterfeit seal or instrument intended for aggravated forgery

BNS reference: 341(1)

Making or counterfeiting a seal, plate or impression instrument with intent to commit forgery punishable under BNS 338, or possessing it knowing it is counterfeit with that intent, attracts life imprisonment or imprisonment up to seven years and liability to fine. The specific intended forgery is central.

IPC 473. Counterfeit seal or instrument intended for other forgery

BNS reference: 341(2)

Where the intended forgery is punishable under this chapter otherwise than under BNS 338, the corresponding making or knowing possession attracts imprisonment up to seven years and liability to fine. BNS 341(3) also expressly addresses knowing possession of a counterfeit instrument, and 341(4) its fraudulent or dishonest use as genuine; distinguish these from the specific-intent branches.

IPC 474. Possession of specified forged documents with intent to use

BNS reference: 339

Possession must be accompanied by knowledge of forgery and an intention fraudulently or dishonestly to use the document as genuine. For a BNS 337 document, punishment is imprisonment up to seven years and fine; for a BNS 338 document, life imprisonment or imprisonment up to seven years and fine. The latter seven-year alternative differs from the ten-year alternative for making the forgery under 338.

IPC 475. Counterfeit authentication device or mark for valuable security, etc.

BNS reference: 342(1)

Counterfeiting an authentication device or mark on or in material for documents described in BNS 338, or possessing material bearing it, requires the prescribed intent to lend false authenticity to a forged or intended forged document. Punishment: life imprisonment or imprisonment up to seven years and liability to fine. Distinguish the authentication mark from a mark denoting ownership of goods.

IPC 476. Counterfeit authentication device or mark for other documents

BNS reference: 342(2)

For documents or electronic records outside BNS 338, the corresponding counterfeit authentication mark or marked-material conduct with the specified intent attracts imprisonment up to seven years and liability to fine.

IPC 477. Fraudulent cancellation or destruction of will, authority to adopt or valuable security

BNS reference: 343

Dishonest or fraudulent conduct, or intent to cause damage or injury, must accompany the specified cancellation, destruction, defacement, concealment or related mischief. Attempts are expressly included. The protected instruments are wills, authorities to adopt a son and valuable securities. Punishment: life imprisonment or imprisonment up to seven years and liability to fine.

IPC 477A. Falsification of accounts

BNS reference: 344

A clerk, officer, servant or person acting in that capacity must wilfully and with intent to defraud falsify, alter, destroy or mutilate the relevant employer's books, electronic records, papers, writings, securities or accounts, or make or abet false entries or material omissions or alterations. Punishment: imprisonment up to seven years, or fine, or both. The explanation permits a charge alleging general intent to defraud without specifying a victim, sum or day; intent must still be proved.

Property and other marks

IPC 478-489

A property mark identifies ownership of movable property; a receptacle mark may instead mislead about contents or quality. Read the express defences and mental elements. Preserve the repealed IPC entries for continuity without treating old trade-mark provisions as operative BNS offences.

IPC 478. Repealed provision

BNS reference: No direct operative counterpart - repealed

IPC 478 was repealed before BNS by the Trade and Merchandise Marks Act, 1958. Retain the entry for historical numbering only. It is not an operative offence to be mechanically mapped to the BNS property-mark provisions; trade-mark legislation requires separate study.

IPC 479. Property mark

BNS reference: 345(1)

A mark used for denoting that movable property belongs to a particular person is a property mark. Ownership identification is the focus. Do not assume that a commercial trade mark and a property mark have identical legal functions.

IPC 480. Repealed provision

BNS reference: No direct operative counterpart - repealed

IPC 480 was also repealed by the Trade and Merchandise Marks Act, 1958. Its historical position is preserved without assigning a fictitious BNS counterpart. Contemporary trade-mark issues must be assessed under the applicable separate enactment.

IPC 481. Using a false property mark

BNS reference: 345(2)

Marking movable property, goods or their receptacle, or using a marked receptacle, amounts to using a false property mark where the manner is reasonably calculated to cause belief that the property belongs to someone to whom it does not belong. Identify the misleading ownership representation.

IPC 482. Punishment for using a false property mark

BNS reference: 345(3)

Use of a false property mark attracts imprisonment up to one year, or fine, or both, unless the accused proves that they acted without intent to defraud. Read the definition in 345(2) and preserve this express statutory qualification.

IPC 483. Counterfeiting a property mark used by another

BNS reference: 347(1)

Counterfeiting a property mark used by another person attracts imprisonment up to two years, or fine, or both. Distinguish making the counterfeit mark from subsequently selling goods bearing it.

IPC 484. Counterfeiting a mark used by a public servant

BNS reference: 347(2)

This aggravated branch concerns public-servant property marks and specified official marks denoting matters such as manufacture, quality, passage through an office or exemption. Knowingly using such a counterfeit mark as genuine is also covered. Punishment: imprisonment up to three years and liability to fine.

IPC 485. Making or possessing an instrument for counterfeiting a property mark

BNS reference: 348

The section covers making or possessing dies, plates or instruments for counterfeiting property marks, and possessing a property mark for falsely denoting ownership. Punishment: imprisonment up to three years, or fine, or both. Connect possession to the purpose described in the enactment.

IPC 486. Selling goods marked with a counterfeit property mark

BNS reference: 349

Selling, exposing or possessing for sale goods bearing a counterfeit property mark attracts imprisonment up to one year, or fine, or both, subject to statutory defences. The accused may prove both reasonable precautions with no reason to suspect genuineness and disclosure of available supplier information when demanded by or for the prosecutor; alternatively, they may prove that they otherwise acted innocently. Do not omit the conjunction between the first two conditions.

IPC 487. Making a false mark upon a receptacle containing goods

BNS reference: 350(1)

The false mark must be reasonably calculated to mislead about the receptacle's contents or their nature or quality. Punishment is imprisonment up to three years, or fine, or both, unless the accused proves absence of intent to defraud. This concerns representations about contents, distinct from ownership alone.

IPC 488. Using such a false mark

BNS reference: 350(2)

Making use of a false mark of the kind prohibited by BNS 350(1) carries the same punishment, unless the accused proves absence of intent to defraud. Identify the actual use and the misleading contents representation.

IPC 489. Tampering with a property mark with intent to cause injury

BNS reference: 346

Removing, destroying, defacing or adding to a property mark requires intent to cause injury, or knowledge that injury is likely. Punishment: imprisonment up to one year, or fine, or both. BNS places this provision before counterfeiting offences, so numerical order does not follow the IPC list.

Currency-notes and bank-notes

IPC 489A-489E

These IPC Chapter XVIII offences now correspond to BNS Chapter X, not BNS Chapter XVIII. BNS 178-181 consolidate currency, coin and Government revenue-stamp offences. Separate counterfeiting, trafficking or use, knowing possession with intended use, and instruments or materials. BNS 182 retains a distinct resemblance-document regime.

IPC 489A. Counterfeiting currency-notes or bank-notes

BNS reference: 178

BNS consolidates currency-note and bank-note counterfeiting with coin and Government revenue-stamp offences in Chapter X. Counterfeiting, or knowingly performing any part of the counterfeiting process, attracts life imprisonment or imprisonment up to ten years and liability to fine. This is the currency-related correspondence, not a claim that the two sections have identical scope.

IPC 489B. Using as genuine forged or counterfeit currency-notes or bank-notes

BNS reference: 179

The consolidated provision covers specified import, export, sale, delivery, purchase, receipt, trafficking or use as genuine, with knowledge or reason to believe the item counterfeit. Punishment: life imprisonment or imprisonment up to ten years and liability to fine. Currency, coin and Government revenue-stamp categories are now addressed together.

IPC 489C. Possession of forged or counterfeit currency-notes or bank-notes

BNS reference: 180

Possession requires knowledge or reason to believe that the item is counterfeit and intent to use it as genuine or let it be so used. Punishment: imprisonment up to seven years, or fine, or both. The explanation states that possession established to be from a lawful source does not constitute an offence under this section. Accidental receipt is not, by itself, proof of every ingredient.

IPC 489D. Instruments or materials for forging or counterfeiting currency

BNS reference: 181

Making, mending, buying, selling, disposing of or possessing relevant machinery, dies, instruments or materials requires the counterfeiting purpose, or knowledge or reason to believe they are intended for it. Punishment: life imprisonment or imprisonment up to ten years and liability to fine. The consolidated BNS section also covers coin and Government revenue stamps; ordinary equipment alone does not establish liability.

IPC 489E. Documents resembling currency-notes or bank-notes

BNS reference: 182(1)-(3)

Making, causing to be made, using or delivering a document purporting to be, or sufficiently resembling to deceive, a currency-note or bank-note attracts a fine up to Rs 300 under subsection (1). Subsection (2) provides a fine up to Rs 600 for refusal by a person whose name appears on such a document, without lawful excuse, to disclose the maker's name and address when required by a police officer. Subsection (3) creates a rebuttable presumption concerning a person whose name appears on such a document. Do not treat this resemblance offence as automatically full counterfeiting under 178.

Revision and exam method

- False statement, false document and forgery are different questions: apply BNS 335 and then 336.
- Special document categories in 337 and 338 affect both forgery and related possession or use offences.
- BNS 340(2) punishes knowing fraudulent or dishonest use as if the user forged the document.
- BNS 339 has a seven-year alternative for possession of a 338-type document; do not substitute the ten-year alternative in 338.
- BNS 344 requires the specified employment capacity and wilful intent to defraud.
- IPC 478 and 480 were repealed before BNS and have no direct operative counterpart here.
- Property marks concern ownership; marks under 350 concern misleading contents or quality.
- BNS 349: the precautions and information conditions are cumulative within that defence; otherwise acting innocently is an alternative.
- Currency offences move to BNS Chapter X. Knowledge and intended use matter in 180, alongside its lawful-source explanation.
- BNS 182 fines are up to Rs 300 and Rs 600 in the respective branches.

Use this sequence: identify the date and applicable law; classify the document, mark or currency item; identify the act and its statutory mode; establish knowledge, dishonesty, fraud or specific intention; examine statutory qualifications; select the precise subsection; then state the authorised punishment. In comparison answers distinguish consolidation, expansion, relocation and prior repeal. Do not infer a criminal offence solely from a civil ownership dispute, inaccurate accounting entry or innocent receipt of currency.

High-yield distinctions

- False assertion / false document / forgery: prove each statutory requirement.
- Making / possessing / using: conduct and mental elements differ.
- Property ownership / commercial origin / receptacle contents: classify the mark.
- Counterfeiting / knowing currency possession / resemblance documents: separate the provisions.

Practice questions and model answers

Self-check exercises. These are study questions, not a timed or graded assessment.

1. A genuinely executed deed contains a disputed ownership assertion. Is that alone forgery?

Model answer: No automatic conclusion follows. Identify a false-document mode under 335 and the intent required by 336(1). A false assertion alone is not a substitute for those elements. Other offences, if alleged, need independent proof.

2. A person knowingly submits a forged will as genuine with dishonest intent. Which provisions guide the analysis?

Model answer: BNS 340(2) governs use; 338 identifies the special instrument category and the punishment as if the user forged it. Mere use must be distinguished from knowing dishonest or fraudulent use.

3. Compare making a forged valuable security with possessing it intending fraudulent use.

Model answer: Making falls under 338: life or up to ten years and fine. Knowing possession with the required intent falls under 339: life or up to seven years and fine. The conduct and alternative maximum differ.

4. An employee corrects an accounting error openly and honestly. Does every alteration attract 344?

Model answer: No. The specified employment connection, wilfulness and intent to defraud must be proved. An honest correction does not by itself satisfy those requirements.

5. Should IPC 478 and 480 be assigned BNS property-mark numbers?

Model answer: No. They were repealed before BNS. Preserve their historical entries and explain the separate trade-mark regime rather than inventing operative counterparts.

6. What must a seller establish under the first defence in BNS 349?

Model answer: Both reasonable precautions and no reason to suspect the mark, and the available supplier information when properly demanded. The alternative branch permits proof that the seller otherwise acted innocently.

7. A person unknowingly receives a counterfeit note in ordinary change. Is possession alone sufficient under 180?

Model answer: No. Knowledge or reason to believe and intent to use as genuine or let it be so used are required. Also consider the express explanation where possession from a lawful source is established.

8. Where are IPC 489A-489E located in BNS, and is resemblance the same as counterfeiting?

Model answer: Their subject matter corresponds to 178-182 in Chapter X. Section 182 is a distinct resemblance-document regime with fine-based branches and a rebuttable presumption; do not automatically substitute the counterfeiting offence in 178.

Official sources

Primary reading and source scope

Bharatiya Nyaya Sanhita, 2023 - official Gazette: Chapter XVIII (335-350) and Chapter X (178-182)

[Open official source](#)

Indian Penal Code, 1860 - historical Chapter XVIII, including repeal annotations

[Open official source](#)

BNS commencement notification S.O. 850(E), 23 February 2024

[Open official source](#)

BNS Chapter XVIII appears on Gazette printed pages 92-97; the currency provisions appear on printed pages 52-53 in Chapter X. The commencement notification fixes 1 July 2024 for these provisions. The IPC link is historical reading; use the relevant version for the date and jurisdiction. The supplied IPC headings have been normalised for spelling and grouping.

These explanatory notes were prepared for legal education. A section mapping does not establish liability without proof of the statutory ingredients. Subsequent amendments, special statutes and applicable local provisions must be checked for a live matter.